

PROCLAMATION OF SALE

IN THE MATTER OF THE LOAN AGREEMENT DATED 18TH JULY 2022 AND DEED OF ASSIGNMENT
DATED THE 2ND DAY OF SEPTEMBER, 2022

BETWEEN

UNITED OVERSEAS BANK (MALAYSIA) BHD [199301017069 (271809-K)]

ASSIGNEE/BANK

AND

CHAI KIAN WEI (NRIC NO. 830420-13-5415)

ASSIGNOR(S)/BORROWER(S)

In exercise of the rights and powers conferred upon the Assignee/Bank under **Loan Agreement dated 18th July 2022 and Deed of Assignment dated the 2nd day of September, 2022** entered into between the Assignors/Borrowers and the Assignee/Bank, it is hereby proclaimed that the Assignee/Bank with the assistance of the undermentioned Auctioneer

WILL SELL THE PROPERTY DESCRIBED BELOW BY

PUBLIC AUCTION

VIA ONLINE BIDDING

ON THURSDAY THE 25TH DAY OF JUNE 2026

AT 11.00 A.M.

AT WWW.LEONGAUCTIONEER.COM ("AUCTIONEER'S WEBSITE")

(Bidder registration and payment of auction deposit must be made at least one (1) working day before the auction date and bidders are advised to log in to the Auctioneer's Website provided above and be on standby before the auction time. Bidders are further subject to the Auctioneer's Online Terms and Conditions)

NOTE:

All intending bidders are advised to do the following prior to the auction sale:-

- 1) inspect the subject property;
- 2) obtain a copy of the Conditions of Sale and seek independent legal advice on the Conditions of Sale;
- 3) conduct an official title search at the relevant Land Office and/or other relevant authorities;
- 4) make the necessary enquiries with the Developer and/or other relevant authorities on the terms of consent to the sale herein; and
- 5) The successful bidder shall be responsible to obtain the consent of the Developer for direct transfer if individual/strata title has been issued

PARTICULARS OF TITLE

Strata Title of the property has not been issued by the relevant authority.

MASTER TITLE/LOT NO : GRN 316824, Lot 64369, Mukim of Tebrau, District of Johor Bahru, State of Johor Darul Takzim
DEVELOPER'S PARCEL NO : A-14-22, Type A, Storey No. 14, Building No. A, ARC@Austin with Accessory Parcel No. 270
FLOOR AREA : Approximately 60.39 sq. metres / 650 sq. feet
DEVELOPER : Casa Andaman Sdn. Bhd. [200301007307(609727-U)]
PROPRIETOR : Majlis Bandaraya Johor Bahru
ENCUMBRANCE : Assigned to **United Overseas Bank (Malaysia) Bhd**
TENURE : Freehold
CATEGORY OF LAND USE : "Bangunan"
EXPRESS CONDITION : "i) Tanah ini hendaklah digunakan sebagai bangunan bertingkat untuk tujuan Service Apartment, dibina mengikut pelan yang diluluskan oleh Pihak Berkuasa Tempatan yang berkenaan"
"ii) Segala kekotoran dan pencemaran akibat daripada aktiviti ini hendaklah disalurkan ke tempat-tempat yang telah ditentukan oleh Pihak Berkuasa Tempatan yang berkenaan"
"iii) Segala dasar dan syarat yang ditetapkan dan dikuatkuasakan dari semasa ke semasa oleh Pihak Berkuasa Berkenaan hendaklah dipatuhi"

RESTRICTION-IN-INTEREST : "i) Tuanpunya tanah ini tidak dibenarkan menjual unit-unit (parcel) bangunan yang akan dibina di atas tanah ini melainkan bangunan telah mula dibina mengikut pelan yang diluluskan oleh Pihak Berkuasa Tempatan yang berkenaan"
"ii) Petak-petak bangunan yang didirikan di atas tanah ini apabila Sahaja bertukar miliknya kepada seorang Bumiputera/Syarikat Bumiputera maka tidak boleh terkemudian daripada itu dijual, dipajak atau dipindahmilik daripada apacara sekalipun kepada orang bukan Bumiputera/Syarikat Bukan Bumiputera tanpa persetujuan Pihak Berkuasa Negeri"
"iii) Petak-petak bangunan yang didirikan di atas tanah ini tidak boleh dijual atau dipindahmilik dengan apacara sekalipun kepada Bukan Warganegara/Syarikat Asing tanpa persetujuan Pihak Berkuasa Negeri"

LOCATION AND DESCRIPTION OF THE PROPERTY:

The subject property is a **service apartment** unit bearing postal address of **No. #14-22, Block A, Residensi ARC, Jalan Sagu 36, Taman Daya, 81100 Johor Bahru, Johor**

RESERVE PRICE:

The subject property will be sold on an "**as is where is basis**" and subject to a reserve price of **RM330,000.00 (RINGGIT MALAYSIA THREE HUNDRED THIRTY THOUSAND ONLY)** and subject to the Conditions of Sale and by way of an Assignment from the above Assignee/Bank subject to the consent being obtained by the Purchaser from the Developer and other relevant authorities if any, including all terms, conditions, stipulations and covenants which were and may be imposed by the Developer and the relevant authorities. **All charges (including but not limiting to arrears of quit rent, assessments and service or maintenance charges) due to Developer/joint management body/management corporation/liquidator or any relevant party and all fees, costs and charges relating to the transfer and assignment of the property shall be borne by the successful Purchaser.**

All intending bidders are required to deposit **10%** of the fixed reserve price for the said property by **Bank Draft or Cashier's Order** in favour of **UOBM for CHAI KIAN WEI** or via **RENTAS** or **online banking transfer (FPX) by 3PM, AT LEAST ONE (1) WORKING DAY BEFORE AUCTION DATE**. The balance of the purchase money shall be paid by the Purchaser within **one hundred and twenty (120) days** from the date of auction sale to **UNITED OVERSEAS BANK (MALAYSIA) BHD** via **Real Time Electronics Transfer of Funds and Securities (RENTAS)**. Online bidding, please refer to the Online Terms & Conditions on www.leongauctioneer.com for the manner of payment of the deposit.

FOR FURTHER PARTICULARS, please contact **Messrs Chua & Partners**, Solicitor for the Assignee/Bank herein whose address is at **46-01, Jalan Molek 1/28, Taman Molek, 81100 Johor Bahru, Johor** [Reference No.: **CPR/UOB(A)2483/26**, Telephone No.: **07-3510 510**] or the undermentioned Auctioneer at the address below.

LEONG AUCTIONEER SDN BHD (922719-M)

Suite 1009, 10th Floor, Amcorp Tower
Amcorp Trade Centre, No. 18, Jalan Persiaran Barat
46050 Petaling Jaya, Selangor
TEL NO.: 03-795 83 795
FAX NO.: 03-795 78 795
EMAIL: leongauc@gmail.com
WEBSITE : www.leongauctioneer.com

LEONG WYE HOONG

KENNETH LEONG KHEEN CHOONG

Licensed Auctioneers

Ref: **LA26/468/UOB/H.1**

PERISYTIHARAN JUALAN

DALAM PERKARA PERJANJIAN PINJAMAN BERTARIKH 18HB JULAI 2022 DAN SURATIKATAN PENYERAHANHAK BERTARIKH 2HB SEPTEMBER, 2022

ANTARA

UNITED OVERSEAS BANK (MALAYSIA) BHD [199301017069 (271809-K)]

PIHAK PEMEGANG SERAHHAK/BANK

DAN

CHAI KIAN WEI (NO. K/P: 830420-13-5415)

PIHAK PENYERAHHAK/PEMINJAM

Dalam menjalankan hak dan kuasa yang telah diberikan kepada Pihak Pemegang Serahhak/Bank dibawah Perjanjian Pinjaman bertariikh 18hb Julai 2022 dan Suratikatan Penyerahanhak bertariikh 2hb September, 2022 diantara Pihak Pemegang Serahhak/Bank dan Pihak Penyerahhak/Peminjam yang diperbuat dalam perkara diatas, adalah dengan ini diisytiharkan bahawa Pihak Pemegang Serahhak /Bank tersebut dengan bantuan Pelelong yang tersebut dibawah

AKAN MENJUAL HARTANAH YANG DITERANGKAN DI BAWAH SECARA

LELONGAN AWAM

SECARA ATAS TALIAN

PADA HARI KHAMIS BERSAMAAN 25HB JUN 2026

PADA JAM 11.00 PAGI

DI LAMAN WEB WWW.LEONGAUCTIONEER.COM

(Pendaftaran pembida dan pembayaran deposit hendaklah dibuat sekurang-kurangnya satu (1) hari bekerja sebelum tarikh lelongan dan pembida dikehendaki untuk log masuk pautan yang diberikan dan diminta bersedia sebelum masa lelongan. Pembida juga tertakluk kepada Terma dan Syarat Atas Talian Pelelong).

NOTA:

Bakal-bakal pembeli adalah dinasihatkan agar membuat perkara-perkara yang berikut sebelum jualan lelong:-

- 1) memeriksa hartanah tersebut;
- 2) memperoleh salinan Syarat-Syarat Jualan dan meminta nasihat guaman bebas mengenai Syarat-Syarat Jualan;
- 3) membuat carian hakmilik induk secara rasmi di Pejabat Tanah dan/atau pihak-pihak berkuasa lain yang berkenaan.
- 4) membuat pertanyaan dengan Pihak Pemaju dan/atau pihak-pihak berkuasa yang lain yang berkenaan mengenai terma-terma persetujuan untuk jualan ini dan
- 5) Pembeli yang berjaya akan bertanggungjawab untuk mendapatkan kebenaran Pemaju untuk pindahmilik terus sekiranya hakmilik individu/strata telah dikeluarkan

BUTIR-BUTIR HAKMILIK

Hakmilik Strata belum dikeluarkan oleh Pihak Berkuasa yang berkenaan

NO. HAKMILIK INDUK/LOT : GRN 316824, Lot 64369, Mukim Tebrau, Daerah Johor Bahru, Negeri Johor Darul Takzim
NO. PETAK PEMAJU : A-14-22, Jenis A, No. Tingkat 14, No. Bangunan A, ARC@Austin dengan Petak Aksesori No. 270
KELUASAN LANTAI : Lebih kurang 60.39 meter persegi / 650 kaki persegi
PEMAJU : Casa Andaman Sdn. Bhd. [200301007307(609727-U)]
PEMILIK TANAH : Majlis Bandaraya Johor Bahru
BEBANAN : Serahhak kepada **United Overseas Bank (Malaysia) Bhd**
PEGANGAN : Selama-lamanya
KATEGORI KEGUNAAN TANAH : Bangunan
SYARAT NYATA : "i) Tanah ini hendaklah digunakan sebagai bangunan bertingkat untuk tujuan Service Apartment, dibina mengikut pelan yang diluluskan oleh Pihak Berkuasa Tempatan yang berkenaan"

"ii) Segala kekotoran dan pencemaran akibat daripada aktiviti ini hendaklah disalurkan ke tempat-tempat yang telah ditentukan oleh Pihak Berkuasa Tempatan yang berkenaan"

"iii) Segala dasar dan syarat yang ditetapkan dan dikuatkuasakan dari semasa ke semasa oleh Pihak Berkuasa Berkenaan hendaklah dipatuhi"

SEKATAN KEPENTINGAN : "i) Tuanpunya tanah ini tidak dibenarkan menjual unit-unit (parcel) bangunan yang akan dibina di atas tanah ini melainkan bangunan telah mula dibina mengikut pelan yang diluluskan oleh Pihak Berkuasa Tempatan yang berkenaan"

"ii) Petak-petak bangunan yang didirikan di atas tanah ini apabila Sahaja bertukar miliknya kepada seorang Bumiputera/Syarikat Bumiputera maka tidak boleh terkemudian daripada itu dijual, dipajak atau dipindahmilik daripada apacara sekalipun kepada orang bukan Bumiputera/Syarikat Bukan Bumiputera tanpa persetujuan Pihak Berkuasa Negeri"

"iii) Petak-petak bangunan yang didirikan di atas tanah ini tidak boleh dijual atau dipindahmilik dengan apacara sekalipun kepada Bukan Warganegara/Syarikat Asing tanpa persetujuan Pihak Berkuasa Negeri"

LOKASI DAN PERIHAL HARTANAH:

Hartanah tersebut adalah seunit **apartmen servis** beralamat di pos **No. #14-22, Block A, Residensi ARC, Jalan Sagu 36, Taman Daya, 81100 Johor Bahru, Johor**

HARGA RIZAB:

Hartanah tersebut akan dijual dalam "keadaan sepertiimana sediaada" dan tertakluk kepada satu harga rizab sebanyak **RM330,000.00 (RINGGIT MALAYSIA TIGA RATUS TIGA PULUH RIBU SAHAJA)** dan tertakluk kepada Syarat-Syarat Jualan dengan cara Penyerahhakan dari Pemegang Serahhak/Bank dan tertakluk kepada kebenaran untuk pindahmilik diperolehi daripada Pemaju dan Pihak Berkuasa yang berkenaan, sekiranya ada termasuk semua terma, syarat-syarat, stipulasi, waad di mana mungkin yang akan dikenakan oleh Pemaju dan Pihak Berkuasa. **Semua caj (termasuk tetapi tidak terhad kepada cukai tanah, cukai taksiran dan denda termasuk caj perkhidmatan atau penyenggaraan) yang mungkin dikenakan oleh Pemaju/Badan Pengurusan Bersama/Perbadanan Pengurusan/Pelikuidasi atau mana-mana pihak yang berkenaan dan semua fi, kos dan caj berkaitan dengan pindahmilik dan penyerahhakan hartanah tersebut hendaklah ditanggung oleh Pembeli berjaya.**

Bagi penawar-penawar yang berminat adalah dikehendaki menandatangani **10%** daripada harga rizab dalam bentuk **Bank Draf** atau **Kasyier Order** di atas nama **UOBM untuk CHAI KIAN WEI** atau secara **RENTAS** atau melalui pemindahan perbankan atas talian (**FPX**) sekurang-kurangnya satu (1) hari bekerja sebelum tarikh lelongan selewat-lewatnya pada pukul 3 petang kepada Pelelong tersebut di bawah. Baki wang belian hendaklah dibayar oleh Pembeli dalam tempoh **satu ratus dan dua puluh (120) hari** dari tarikh jualan kepada **UNITED OVERSEAS BANK (MALAYSIA) BHD** melalui Sistem Pemindahan Elektronik, Masa Nyata bagi Dana dan Sekuriti (**RENTAS**). Sila rujuk Terma & Syarat Online di www.leongauctioneer.com untuk cara-cara pembayaran deposit.

UNTUK MENDAPATKAN BUTIR-BUTIR SELANJUTNYA, sila berhubung dengan **Tetuan Chua & Partners** yang beralamat di **46-01, Jalan Molek 1/28, Taman Molek, 81100 Johor Bahru, Johor** [No. Ruj: **CPR/UOB(A)2483/26**, No. Tel: **07-3510 510**] Pihak Pemegang Serahhak/Bank atau Pelelong yang tersebut di bawah.

LEONG AUCTIONEER SDN BHD (922719-M)

Suite 1009, Tingkat 10, Menara Amcorp
Pusat Perdagangan Amcorp, No. 18, Jalan Persiaran Barat
46050 Petaling Jaya, Selangor
NO. TEL: 03-795 83 795
NO. FAKS: 03-795 78 795
EMAIL: leongauc@gmail.com
WEBSITE : www.leongauctioneer.com

LEONG WYE HOONG

KENNETH LEONG KHEEN CHOONG

Pelelong Berlesen

Ruj: **LA26/468/UOB/H.1**

CONDITIONS OF SALE

1. The sale is made by **UNITED OVERSEAS BANK (MALAYSIA) BHD** (hereinafter called "the Assignee/Bank") in the exercise of the rights and powers conferred upon the Assignee/Bank in pursuance of the **Loan Agreement dated 18th July 2022 and Deed of Assignment dated the 2nd day of September, 2022** executed by the Assignor and the Borrowers in favour of the Assignee/Bank and is made subject to all conditions and category of land use, expressed or implied or imposed upon or relating to or affecting the Property and subject to the terms and conditions contained herein.
2. Subject to the reserve price, the highest bidder being so allowed by the Auctioneer shall be the Purchaser but the Auctioneer reserves the right to regulate the bidding and shall have the sole right to refuse any bid or bids without giving any reason for such refusal. The Auctioneer reserves the right to alter or add to these Conditions of Sale at any time prior to the sale. In the case of any dispute as to any bid, the Auctioneer may at his own option forthwith determine the dispute or put the Property up again for sale or put the Property at the last undisputed bid or withdraw the Property from auction sale. Any bid shall be subject to the minimum amount as decided by the Auctioneer.
3. The Assignee/Bank be and is hereby at liberty to bid for the Property at the sale (**without having to pay any deposit whatsoever**). The Auctioneer shall have the right to withdraw the Property for sale at any time before it has been actually knocked down and either after or without declaring the reserved price. In the event of the Assignee/Bank becoming the Purchaser, the Assignee/Bank is at liberty to set off the purchase price against the amount due and owing under the said **Loan Agreement and Deed of Assignment** on the date of sale, plus the cost and expenses including but not limited to taxes, duties or levies of the sale and all other costs and expenses including but not limited to taxes, duties or levies whatsoever in connection with this matter.
4. No bid shall be less than the last previous bid by a sum to be fixed by the Auctioneer at the time of the sale and no bidding shall be retracted. Should there be any retraction from the bidder (s) before the fall of the hammer, the deposit of **10%** of the reserve price shall be forfeited to the Assignee/Bank and the Property shall at the option of the Assignee/Bank be put up for sale again or the Assignee/Bank may decide to adjourn the auction sale to another date.
5. Each intending bidder (**with the exception of the Assignee/Bank**) is required to deposit with the Auctioneer **10%** of the fixed reserve price for the Property by **Bank Draft or Cashier's Order** in favour of **UOBM for CHAI KIAN WEI** prior to the auction sale. Any intending bidder who intends to bid on behalf of another person, body corporate or firm is required to deposit with the Auctioneer prior to the auction sale an authority letter to state that he is acting on behalf of another person, body corporate or firm, and he/she is authorised to sign all the necessary documents. **For a Bumiputra lot, only Bumiputra(s) are allowed to act for and on behalf of the bidder.** All intending bidders shall be required to verify their identities by showing the Auctioneer their identity cards prior to the commencement of the auction, failing which they shall not be entitled to bid. A person who has not reached the age of majority as defined under the Age of Majority Act 1971 (Act 21) (which is 18 years of age) as at the date of auction sale, or who is an undischarged bankrupt, shall not be permitted to bid in his personal capacity or act as agent of a principal at the auction sale. **A foreign citizen or foreign company is only allowed to bid for the Property subject to the prevailing legal requirements, guidelines and/or existing policies and if the bid is successful, the sale is subject to the foreign citizen or foreign company applying and obtaining at his/her/its own costs the unconditional consent of the Foreign Investment Committee (if any) and/or relevant State Authorities in the said sale in accordance with the terms stated.** Online Bidders are subject to the provisions of Clause(s) 5.1, 5.2 and 5.3 of the **Terms and Conditions on www.leongauctioneer.com for the manner of payment of the deposit.**
6. Immediately after the fall of the hammer, the Purchaser (**other than the Assignee/Bank if he/she is the Purchaser**) shall pay to the Assignee/Bank, the difference between the deposit paid under Clause 5 above and the sum equivalent to **10%** of the successful bid ("Differential Sum") in **CASH or by BANK DRAFT** The differential sum and the deposit paid under Clause 5 above (collectively referred to as "the Deposit") shall be deemed to be part payment of the purchase price. The Purchaser shall also complete and execute these Conditions of Sale and Memorandum of Contract. The Deposit shall be held by the Assignee/Bank subject to the provisions of Clauses 7 and 9 herein.
7. In the event that the Purchaser fails to pay the Deposit or fails to sign these Conditions of Sale and Memorandum of Contract, all monies paid by the Purchaser to the Assignee/Bank shall be forfeited to the Assignee/Bank and the Property shall forthwith be again put up for sale. The costs of such re-sale together with the deficiency in price (if any) which may result from a re-sale or the purchase money if there is no re-sale, as the case may be, shall be recoverable from the defaulting Purchaser and the Purchaser shall have no claims whatsoever against the Assignee/Bank, their Solicitors or the auctioneer in relation thereto.
8. The balance of the purchase price shall be paid in full by the Purchaser to the Assignee/Bank within **one hundred and twenty (120) days** from the date of the auction sale, by **remitting the payment directly to the Assignee/Bank via RENTAS**. The period of **120 days** will not be extended by the Assignee/Bank, unless the Purchaser shall have, prior to the expiry of the said period, issued a written request to the Assignee/Bank applying for an extension of time and the Assignee/Bank may in its absolute discretion (i) agree to grant the extension of time unconditionally, or (ii) refuse the request, in which case the Deposit shall be forfeited, or (iii) agrees to grant an extension of time subject to conditions (including but not limited to the imposition of late payment interest/charges at such rate/amount as the Assignee/Bank shall determine) without assigning any reasons whatsoever and such decision shall be binding on the Purchaser.

Upon payment via RENTAS, the Purchaser shall immediately forward the RENTAS Credit Payment Advice with the details above to the Assignee/Bank or to the Solicitors for the Assignee/Bank. The Assignee/Bank and/or the Solicitors for the Assignee/Bank shall not be responsible for any delay caused or costs incurred from any payment made/transaction conducted via RENTAS. Any service charges and/or cost payable for the payment made/transaction conducted via RENTAS shall be borne by the Purchaser.
9. In default of such payment of the balance of the purchase price within the time and in the manner as stipulated in Clause 8 above, the Deposit shall be forfeited to the Assignee/Bank and the Property may be put up for sale by the Assignee/Bank at its sole discretion. The cost of such resale together with either the deficiency in price (if any) which may result from a resale, or the balance of the purchase price if there is no resale shall be recoverable from the defaulting Purchaser and the Purchaser shall have no claims whatsoever against the Assignee/Bank, their Solicitors or the auctioneer in relation thereto.
10. Upon full payment of the balance purchase price and in accordance with Clause 8 above and subject to the consent to transfer from the any relevant authorities (**if applicable**) being obtained by the Purchaser, the Assignee/Bank shall execute or cause to be executed as soon as possible at the Purchaser's own cost and expenses (**including but not limited to legal fees, stamp duty, registration fees, taxes, duties and levies**) the Assignee's standard Assignment in favour of the

Purchaser of all the rights and benefits under the Sale and Purchase Agreement entered into between the Developer of the Property and the Assignor upon such terms and conditions stipulated by the Assignee/Bank in its absolute discretion. Thereafter, upon the Purchaser's payment of all such costs and expenses and any administrative or transfer costs or any other maintenance/service charges and outgoings including taxes, duties or levies that may be due to or imposed by the Developer and/or any relevant authorities notwithstanding that in the consent letter, the Developer may require such payments to be paid by the Assignee/Bank, the Assignee/Bank shall deliver to the Purchaser or his/her solicitor the duly executed Assignment, the original Sale and Purchase Agreement and certified true copy(ies) of the previous Assignment. For this purpose, the Purchaser hereby agrees that the Assignment to be executed shall be in the standard form duly obtained from the Assignee/Bank.

- 10.1. *It shall be the duty of the Purchaser to obtain at the Purchaser's own cost and expenses the confirmation as stated in Section 22D(4) of the Housing Development (Control and Licensing) Act, 1966 and to obtain copies of the statement of account for the outstanding charges (**including but not limited to quit rent, assessment, service and maintenance charges, penalty interest, late charges, insurance, sinking fund and utilities bills**) from the Developer and/or relevant authorities. All outstanding charges thereunder shall be borne by the Purchaser solely. The inability of the Purchaser to obtain the Developer's confirmation shall not a ground for termination of this auction sale. Any discrepancies in the particulars (if any) from the Developer shall not be a ground of termination of this auction sale. The purchaser shall at his own costs and expenses apply to the Court for the appropriate reliefs, including reliefs under rectification of contract.
- 10.2. *It is hereby agreed that all charges (including but not limited to quit rent, assessment and service and maintenance charges, penalty interest, late charges, insurance, sinking fund, special fund, telephone bills, water bills, electricity bills, sewerage charges) shall NOT be borne by the Assignee/Bank.
- 10.3. *The purchaser undertakes to forward to the Developer upon completion, the duly stamped Assignment and a copy of this stamped Proclamation of Sale/Memorandum of Contract together with the full payment of all sums and outgoings due to the Developer under the Sale and Purchase Agreement as required under Section 22D(2) of the Housing Development (Control and Licensing) Act 1966, within fourteen (14) days from the date of stamping of the Assignment and to forward a copy of the covering letter with the Developer's acknowledgement of receipt to the Assignee/Bank or its Solicitors.
- 10.4. **It shall be the duty of the Purchaser to obtain at the Purchaser's own costs and expenses, copies of the statement of account for the outstanding charges (including but not limited to quit rent, assessment and service and maintenance charges, penalty interest, late charges, insurance, sinking fund and utilities bills) from the Developer and/or relevant authorities. All outstanding charges thereunder shall be borne by the Purchaser solely. The inability of the Purchaser to obtain the Developer's consent shall not a ground for termination of this auction sale. Any discrepancies in the particulars (if any) from the Developer shall not be a ground of termination of this auction sale. The purchaser shall at his own cost and expenses apply to the Court for the appropriate reliefs, including specific reliefs or rectification of contract.
- 10.5. **Notwithstanding any contrary terms and conditions which may be imposed by the Developer or relevant authorities on the Assignee/Bank in granting the consent to the sale herein (if applicable), it is hereby agreed that all charges (including but not limited to quit rent, assessment and service and maintenance charges, penalty interest, late charges, insurance, sinking fund, special fund, telephone bills, water bills, electricity bills, sewerage charges) shall NOT be borne by the Assignee/Bank.
- 10.6. If the individual title/strata title has been issued, whether before, on or after the auction sale, the Assignee/Bank shall NOT be required to register its charge(s) nor to procure a transfer in Form 14A of the National Land Code 1965, in favour of the Purchaser from the Developer or the Proprietor (as the case may be). Upon full payment of the purchase price and subject to the consent from the relevant authorities (if applicable), it is hereby mutually agreed that the Purchaser shall be the beneficial owner of the Property whereas the Developer and/or the Proprietor is the bare trustee. The Purchaser undertakes, at his own costs and expenses, to obtain the relevant party's execution (including Developer and/or Proprietor) on the Direct Transfer of the Property to the Purchaser whereby the Purchaser also undertakes to commit all acts and deeds related to the Memorandum of Transfer to enable the effective transfer of the Property to the Purchaser (including the full settlement of all legal fees, stamp duty, registration fees, taxes, duties and levies connected therewith). In the event the Developer and/or the Proprietor refused to transfer the Property to the Purchaser, the Purchaser shall at his own costs and expenses procure a 'Double Transfer' or commence the appropriate legal action (including specific reliefs) to compel the performance of such transfer. The refusal of the Developer and/or the Proprietor is not a ground for termination of this auction sale.
11. As from the time of the auction sale, the Property shall be at the sole risk of the Purchaser as regards to any loss or damage by fire or other accident or otherwise or any restrictions-in-interest, easements, leases, tenancies, occupiers, charges, caveats, covenants, liabilities arising/entered after the auction sale.
12. The Purchaser shall deem to have inspected the Property and therefore admit the identity and the "**as is where is basis**" of the Property purchased by him with that comprised in the muniments offered by the Assignee/Bank as the title of the Property upon the evidence afforded by the comparison of the description in the particulars and muniments respectively.
13. The Purchaser shall bear and pay all fees and expenses including but not limited to all legal fees, stamp duty, search fees, registration fees, taxes, duties and levies in connection with, incidental to or pursuant to the Assignment and all other documents necessary for effecting the transfer or assigning the beneficial ownership in the Property to the Purchaser.
14. The Property is sold subject to all existing easements, leases, tenancies, occupiers, charges, caveats, previous sale and purchase, previous assignment, covenants, liabilities subsisting thereon or thereover and the Purchaser shall be deemed to have full knowledge of the state and condition of the Property.
15. The Assignee/Bank has no notice or knowledge of any encroachment or that the Government or other authority has any immediate intention of acquiring the whole or any part of the Property for roads or any improvement schemes and if such encroachment shall be found to exist or if the Government or any local authority has any such intention, the same shall not annul any sale or shall any abatement or compensation be allowed in respect thereof.

16. The Property is believed and shall be taken to be correctly described and is sold subject to all express conditions, restrictions-in-interest, easements, leases, tenancies, occupiers, charges, caveats, previous sale and purchase, previous assignment, covenants, liabilities (including but not limited to liabilities to local authorities incurred but not ascertained and any rates made but not demanded), encumbrances and rights, (if any), subsisting thereon or thereover without any obligation arising to define the same respectively and the Purchaser shall be deemed to have full knowledge of the state and conditions of the Property and no error, mis-statement, omission or mis-description shall annul the sale nor shall any compensation be allowed in respect thereof. The Assignee/Bank will not be liable for any caveats lodged on the Property by third party and it is the duty of the Purchaser to remove the caveat at his/her own cost (if any).
17. In the event of the sale being set aside for any reasons whatsoever by the Assignee/Bank or by an Order of court or consent not being obtained by the Purchaser from the Developer (if applicable) or any other relevant authorities (if applicable) (other than that due to any act of default and/or omission by the Purchaser) this sale shall become null and void and be of no further effect and the Assignee/Bank shall refund the deposit and other monies (if any, paid herein towards account of the purchase price by the Purchaser to the Assignee/Bank) to the Purchaser free of interest less all expenses, costs and fees including but not limited to taxes, duties or levies incurred by the Assignee/Bank in connection with or relating to the sale **PROVIDED ALWAYS THAT** the Purchaser shall have prior thereto returned to the Assignee/Bank all documents, duly intact, which may have been delivered pursuant to the sale, and if the Property has been effectively assigned to the Purchaser, the Purchaser shall have effectively re-assigned the Property back to the Assignee/Bank. The Purchaser shall not be entitled to any claim and demand whatsoever against the Assignee/Bank, the Solicitors, the Auctioneer or any other party on account thereof. A certificate by an officer of the Assignee/Bank verifying such expenses and/or fees shall be final and conclusive and shall be binding on the Purchaser. Upon refund by the Assignee/Bank under this clause, the Purchaser shall have no other or further claims, demands whatsoever in nature and howsoever caused against the Assignee/Bank, its Solicitors and the Auctioneer or their respective servants or agents.
18. The Property shall be sold subject to the consent from the relevant authorities (if applicable). The Purchaser shall within thirty (30) days from the date of auction sale apply to and obtain from the Developer and/or other relevant authorities (if applicable) for consent to transfer or for assignment of the Property and the Purchaser has to comply with all the terms and conditions as imposed by the Developer or other relevant authorities (if applicable) in granting the said consent to transfer or assigning to the Purchaser within the period of **one hundred and twenty (120) days** or within such period as may be specified by the Developer and/or the relevant authority (if applicable), whichever is the earlier and to keep the Assignee/Bank or its Solicitors informed at all times of the developments and forward a copy of the consent to the Assignee's Solicitors upon receipt of the same. All fees, charges and expenses including but not limited to taxes, duties or levies in connection with or incidental to the application shall be borne by the Purchaser.
19. In the event there is any restriction-in-interest on the Property, it is the duty of the Purchaser to comply with the restriction-in-interest and ensure that the sale is completed within **one hundred and twenty (120) days** from the date of the successful auction subject to Clause 8 above.
20. In the event the consent from the Developer and/or other relevant authorities shall be granted subject to conditions which are not acceptable to the Assignee/Bank, the Assignee/Bank shall be entitled to terminate the sale in its absolute discretion whereupon the sale shall be terminated and the Assignee/Bank shall refund all monies paid by the Purchaser towards the purchase price free of interest less all expenses, costs and fees including but not limited to taxes, duties or levies incurred by the Assignee/Bank in connection with or in relation to the sale herein **PROVIDED ALWAYS THAT** the Purchaser shall have prior thereto returned to the Assignee/Bank all documents, duly intact, which may have been delivered pursuant to the sale and if the Property has been effectively assigned to the Purchaser, the Purchaser shall have effectively re-assigned the Property back to the Assignee/Bank. The Purchaser shall not be entitled to any claims and demands whatsoever against the Assignee/Bank, the Solicitors, the Auctioneer or any party on account thereof.
21. The Assignee/Bank does not undertake to deliver vacant possession of the Property to the Purchaser. The Purchaser only after the payment of the balance of the purchase price in full shall at his own cost and expenses take possession of the Property without obligation on the part of the Assignee/Bank or its agent to give vacant possession.
22. In the event that the sale is terminated for any reasons whatsoever, the Purchaser if vacant possession of the Property has been delivered, shall redeliver vacant possession of the Property to the Assignee/Bank at the costs of the Purchaser immediately upon such termination.
23. For the purpose of these conditions, the time allowed by the conditions for the payment of the balance of the purchase money shall be deemed to be the essence of the contract.
24. The Property is sold on an "**as is where is**" basis.
25. The Assignee/Bank be and is hereby at liberty to postpone, call-off or adjourn the auction sale at any material time or to terminate the auction sale of the Property after the fall of the hammer without having to provide any reasons or grounds whatsoever.
26. All statements made in the Proclamation of Sale and Conditions of Sale or otherwise relating to the Property are made without responsibility on the part of the Assignee/Bank, its Solicitors and the Auctioneer or any of them. No such statement may be relied upon as a statement of representation of fact. All intending bidders must satisfy themselves by inspection or otherwise as to the correctness of any such statements and neither the Assignee/Bank, its Solicitors, the Auctioneer nor any person in their employment has any authority to make or give any representation or warranty whatever in relation to the Property.
27. In the event of any discrepancy, omission, mis-statement, mis-description or error, appearing in the various translations of the particulars and conditions herein, the English version shall prevail.
28. The Assignee/Bank makes no representation as to the ownership of furniture fittings and fixtures situated at the Property which items may be on hire purchase, lease or deferred sale from third parties. In such cases the Assignee/Bank accepts no liability for any payments which may be outstanding in respect thereof and the Property is sold subject thereto.
29. All necessary investigations required by intending bidders for their purpose shall be made by the intending bidders themselves who shall bear all costs and expenses relating thereto. All intended bidders including the Purchaser shall be deemed to have read, understood and accepted these Conditions of Sale prior to the auction.
30. The Purchaser should engage a solicitor to act on the Purchaser's behalf for the completion of the purchase of the Property and in the event that no solicitor is appointed, the Purchaser is deemed to have elected to be unrepresented in this sale.

31. In the event of any dispute whatsoever in respect of the sale, the Purchaser hereby expressly agrees to resolve the same with the Assignee/Bank.
32. Unless expressly provided herein, the Assignee/Bank, its Solicitors and the Auctioneer or any of them or their respective agents or servants shall under no circumstances be liable to any bidders or the Purchaser, including but not limited to liability in tort, in relation to any matter or thing arising out of, in connection with, or in respect of the sale of the Property whatsoever and howsoever caused arising.
33. The Purchaser is liable to pay for any other taxes or levies which as at the date of the auction sale of the Property or at any date subsequent to the date of the auction sale of the Property, is required by law or regulations, guidelines, decisions or directives issued under such laws (and shall include any amendments made to such laws, regulations, guidelines, decision or directives) to be paid to any body or authority having jurisdiction over the Assignee/Bank in respect of any monies charged or incurred by the Assignee/Bank in relation to the sale of the Property to the Purchaser.
34. Any other taxes or levies incurred by the Assignee/Bank in relation to the sale of the Property to the Purchaser and any other goods or services provided under the Proclamation of Sale and Conditions of Sale shall be borne and charged to the Purchaser and in the event that the Assignee/Bank shall effect any payment, the Purchaser shall be liable to reimburse the Assignee/Bank for such amounts paid.
35. **Online bidders are also bound by online Terms and Conditions contained at www.leongauctioneer.com in addition to this Conditions of Sale. If there are any conflicts or inconsistencies between the online Terms and Conditions and this Conditions of Sale, the provisions in this Conditions of Sale shall prevail.**

Note

- 1:* **Applicable only for properties that comes within the definition of 'housing accommodation' under the Housing Development (Control and Licensing) Act, 1966.**
- 2:** **Applicable for properties that does not come within the definition of Section 22D under the Housing Development (Control and Licensing) Act, 1966.**

CONTRACT

MEMORANDUM:- At the sale by Public Auction this **25th day of June, 2026** of the property comprised in the foregoing particulars that is to say the rights title interest and benefits to the said property pursuant to the **Sale & Purchase Agreement dated the 10th March 2022** made between **Chong Weng Kee (NRIC No.: 600824-06-5237/5964013)** (The Vendor) and **Chai Kian Wei** (The Purchaser(s)) and **Majlis Bandaraya Johor Bahru** (The Proprietor) and absolutely assigned to the Assignee/Bank pursuant to and under the **Loan Agreement dated 18th July 2022 and Deed of Assignment dated the 2nd day of September, 2022** entered into between United Overseas Bank (Malaysia) Bhd and the Assignors/Borrowers in relation to the subject property bearing postal address **No. #14-22, Block A, Residensi ARC, Jalan Sagu 36, Taman Daya, 81100 Johor Bahru, Johor** the highest bidder for and declared the Purchaser of the said property for the sum of **RM** _____ and a sum of **RM** _____ has been paid to the Assignee by way of deposit and agrees to pay the balance of the purchase money and complete the purchase according to the conditions and the said Auctioneer hereby confirms the said purchase and the Assignee/Bank acknowledge the receipt of the said deposit.

Note : [All charges (including but not limiting to arrears of quit rent, assessment and service or maintenance charges) due to Developer/Joint management body/management corporation/liquidator or any relevant party and all fees, costs and charges relating to the transfer and assignment of the property shall be borne by the successful purchaser]

Purchaser's Particulars :

Name : _____
NRIC No. : _____
Telephone No. : _____
Address : _____

PURCHASE PRICE : RM _____

DEPOSIT PAID : RM _____

BALANCE DUE : RM _____

Signature of Authorised Agent

Name : _____
NRIC No. : _____
Telephone No : _____

For **MESSRS CHUA & PARTNERS**
Solicitors for the Assignee

Name : _____
Telephone No : _____

For **LEONG AUCTIONEER SDN BHD**
Licensed Auctioneer

ONLINE TERMS AND CONDITIONS

1. RECITALS

- 1.1. The Online Terms and Conditions ("**Online Terms & Conditions**") shall apply to every electronic public auction sale for the immovable property ("**public auction**") made by/of **UNITED OVERSEAS BANK (MALAYSIA) BHD** via **www.leongauctioneer.com** ("**LA website**").
- 1.2. "**LA website**" is a website owned and operated by Leong Auctioneer Sdn Bhd ("**Leong Auctioneer**") of Suite 1009, 10th Floor, Amcorp Tower, Amcorp Trade Centre, No. 18, Jalan Persiaran Barat, 46050 Petaling Jaya, Selangor Darul Ehsan.
- 1.3. The Online Terms & Conditions specified herein shall be read together with the Conditions of Sale as attached to the Proclamation of Sale ("**Conditions of Sale**").
- 1.4. The public auction shall be conducted by the Auctioneer of Leong Auctioneer ("**the Auctioneer**") at the office of Leong Auctioneer and/or at any specified auction venue, date and time stated in the Proclamation of Sale.
- 1.5. Intending bidders who are login to LA website and interested to participate in the public auction ("**Online Bidders**") are required to agree and accept the Online Terms & Conditions before proceeding with the registration and Online Bidding and shall be deemed to have read and agreed to the Online Terms & Conditions prior to the registration and Online Bidding.
- 1.6. Online Bidders are solely responsible to visit and/or login to the correct and valid LA's website at **www.leongauctioneer.com** and not otherwise. The Assignee/Bank, the Assignee/Bank's Solicitors, the Auctioneer, Leong Auctioneer and LA website and their respective agents or servants shall not be liable if Bidders intentionally or unintentionally, wrongly or mistakenly visit and/or login to fake, fraudulent and scam website.
- 1.7. The property as stated in the Proclamation of Sale and as shown in the LA website herein referred to as "**the property**".
- 1.8. Online Bidders who have registered online, deposited the 10% deposit of the fixed reserve price of the property within the specified time, fulfill other conditions as required herein and the Conditions of Sale and received online verification by Leong Auctioneer or LA website is herein referred to as "**registered Online Bidders**".
- 1.9. Every public auction may be participated by the registered Online Bidders.
- 1.10. "**Online bidding**" is a process of bidding in a public auction where registered Online Bidders can bid online from anywhere via a computer, smart phone or any device with internet connection without having to appear in the auction venue.
- 1.11. The Auctioneer may from time to time has the sole discretion to add, modify, or delete any Online Terms & Conditions, and such additions, modifications or deletions are binding upon registered Online Bidders in public auction.
- 1.12. Registered Online Bidders are responsible to ensure that the internet access is in good condition during the process of public auction is being conducted. Unsatisfactory internet access may disrupt bids made by the registered Online Bidders.
- 1.13. LA website and Leong Auctioneer shall not be liable for any disruptions, delays, failures, errors, omissions, or loss of transmitted information due to the unsatisfactory internet access or any online disruptions that may occur during the process of auction.
- 1.14. Any decision or instruction made by the Auctioneer shall be final and binding on the registered Online Bidders in the public auction.

2. ELIGIBILITY FOR REGISTERED ONLINE BIDDERS

- 2.1. The minimum age limit for registered Online Bidders is eighteen (18) years and above, of sound mind and not an undischarged bankrupt;
- 2.2. For companies, be incorporated under the laws of Malaysia and not being wound up or in liquidation;
- 2.3. Registered Online Bidders must have full power and authority to bid and to purchase the property and to perform all necessary actions, conditions and matters (including obtaining any necessary consents) in terms of law to enable registered Online Bidders to participate in the public auction and complete the purchase in the event of successful sale.
- 2.4. Registered Online Bidders eligibility requirements are subject to any restrictions and to any legal provisions of existing Federal and State laws. Foreign nationals or companies are also advised to take note of restrictions applicable on foreign purchase imposed by the relevant authorities.

3. REQUIREMENTS FOR ONLINE BIDDERS

- 3.1. Online Bidders may browse through the LA website and select the properties they wish to bid online.
- 3.2. **For Individual/Joint Online Bidders, the following documents shall be uploaded upon online registration:**
 - 3.2.1 Copy of Identity Card (both sides),
 - 3.2.2 Evidence of deposit payment.
- 3.3. **For Agent acting for Individual/Joint Online Bidders, the following documents shall be uploaded upon online registration:**
 - 3.3.1 Copy of Individual/Joint Online Bidder's Identity Card (both sides),
 - 3.3.2 Copy of Agent's Identity Card (both sides),
 - 3.3.3 Copy of letter of authorization to bid,
 - 3.3.4 Evidence of deposit payment.
- 3.4. **For Company, the following documents shall be uploaded upon online registration:**
 - 3.4.1 Copy of the representative Online Bidder's Identity Card (both sides),
 - 3.4.2 Copy of letter of authorization to bid under the Company's Letter Head,
 - 3.4.3 Form 24; Form 44; Form 49 (or its equivalent forms under the Companies Act 2016);
 - 3.4.4 Certified true copy of the company's Memorandum and Articles of Association (M&A),
 - 3.4.5 Board of Director's Resolution,
 - 3.4.6 Evidence of deposit payment.
- 3.5. Online Bidders who is a Foreign Citizen/Foreign Company/Permanent Resident is only allowed to bid for the Property with the prior written consent of the Foreign Investment Committee and/or Economic Planning Unit of Prime Minister Department and/or relevant authorities which shall be uploaded upon online registration. Failing which, Leong Auctioneer has the sole discretion to reject the registration of Foreign Citizen/Foreign Company/Permanent Resident as registered Online Bidders

4. REGISTRATION FOR ONLINE BIDDERS

- 4.1. Parties interested to register as an Online Bidders must first sign up as a User by login on to LA website.
- 4.2. Online Bidders only need to register once and this registration shall be used to all future auctions on the LA website.
- 4.3. Online Bidders are responsible to provide true, current and accurate information upon registration as an Online Bidders.

- 4.4. Online Bidders are required to provide valid and correct e-mail address under Online Bidders' name in the LA website and an e-mail registered in the LA website ("**registered e-mail**") by the Online Bidders shall be used by Leong Auctioneer to issue written notification to the Online Bidders pertaining to the public auction.
- 4.5. Online Bidders are required to complete the registration process by submitting the relevant details and uploading the relevant documents required including evidence of payment of the 10% deposit of the fixed reserve price onto the LA website **latest by 12 noon, at least one (1) working day before the auction date**.
- 4.6. In compliance with Section 4.5 above, Online Bidders acknowledge and agree that Leong Auctioneer, the Auctioneer, LA website, its agents and/or representatives has the right to use Online Bidders' information/details/evidences provided by Online Bidders or its agent for the purposes of registration and verification of Online Bidders, online bidding process and post public auction.
- 4.7. Online Bidders are solely responsible to identify the property correctly and to ensure that all details, liabilities, encumbrances and description of the property are correct and accurate before online bidding.
- 4.8. It is the sole and absolute responsibility of all Online Bidders at their own costs and expenses, to seek and obtain from the Developer and/or the relevant authorities or bodies, all confirmations and/or consents as may be required or as may be applicable in respect of the purchase of the Property and to satisfy themselves on the physical condition of the Property and all matters in connection with the Property prior to the bidding (including and not limited to verifying the identity, particulars, state and condition of the Property and the terms of the conditions and restrictions affecting the Property if any, whether or not the Property is reserved for Bumiputra only or a Malay Reserved property and/or is a low/medium cost property, and matters relating to the ownership and transfer of the Property, the status of the separate document of title to the Property whether has been issued or not and its particulars, if the title of the property has been issued whether the developer is agreeable to a direct transfer of the property in favour of the successful purchaser, the liabilities over the property including the outstanding service or maintenance charges owing to the relevant authorities or the Developer or the management office and other obligations in respect of the Property and the Online Bidders' eligibility and qualification to purchase the Property). Online Bidders shall be deemed to have full knowledge of all of the matters aforesaid. The Assignee/Bank, the Assignee/Bank's Solicitors, the Auctioneer, Leong Auctioneer and LA website and their respective agents or servants do not in any way make any representation or warranty in respect of any of the aforesaid and shall not in any way be responsible or liable to the Online Bidders in respect of any of the aforesaid.

5. 10% (TEN PERCENT) DEPOSIT PAYMENT OF THE FIXED RESERVE PRICE

5.1 Online Bidders must make deposit payment as required under the Conditions of Sale attached to the Proclamation of Sale, i.e. 10%

(ten percent) deposit of the reserve price.

5.2 Payment of the 10% (ten percent) deposit ("**10% deposit**") must be made via online bank transfer and/or by Bank Draft/Cashier's Order at least one (1) working day before the auction date with the following details:-

- | | | |
|----|-------------------|--|
| a) | Account's Name | : LEONG AUCTIONEER SDN. BHD. |
| b) | Name of bank | : AMBANK BERHAD |
| c) | Bank's account No | : 091-201-200-599-7 |
| d) | Description | : DEPOSIT (NAME & CONTACT NO) |

5.3 Online Bidders shall solely be responsible to keep the evidence payment of the 10% deposit paid to claim for the refund in the event

of withdrawal bidding or unsuccessful bid.

6. VERIFICATION OF THE REGISTRATION OF ONLINE BIDDERS

- 6.1. Registration of Online Bidders shall be subjected to verification and approval by Leong Auctioneer and subject further to the 10% deposit payment being cleared by the Bank. Approval from Leong Auctioneer may take at least one (1) working day and any improper, incomplete registration or late registration may be rejected at the sole discretion of the Auctioneer. Leong Auctioneer, the Auctioneer, LA website, its agents and/or representatives shall not be held liable in the event the registration of the Online Bidders is rejected and/or delayed for any reason whatsoever. In the event the registration is rejected, the 10% deposit paid (if cleared by the Bank) shall be refunded by Leong Auctioneer to the same bank account from which the deposit was made within two (2) working days.
- 6.2. Upon approval and verification by Leong Auctioneer and subject to the 10% deposit payment being cleared by the Bank, the Online Bidders who successfully registered as registered Online Bidders will receive a **secured hyperlink** via "registered e-mail" which allows the registered Online Bidders to bid online for the property on the auction date.
- 6.3. Registered Online Bidders agrees to comply with all the security precautions related to the usage and protection of the **secured hyperlink** or generally in respect of the use of this service.
- 6.4. Registered Online Bidders is fully responsible to the privacy and confidentiality of the usage of the **secured hyperlink** and not to reveal the **secured hyperlink** to anyone at any time and in the event the **secured hyperlink** is disclosed to any other person at any time and under any circumstances, whether intentionally or unintentionally, the registered Online Bidders shall immediately without delay notify Leong Auctioneer.
- 6.5. Upon receipt of the **secured hyperlink**, only one device may be used to access the online bidding interface at any one time.

7. WITHDRAWAL BEFORE BIDDING

- 7.1. Registered Online Bidders who have paid the 10% deposit, may withdraw from the public auction by e-mailing the withdrawal request and enclosing evidence payment of 10% deposit to Leong Auctioneer latest by 5.00 pm, at least one (1) working day before the auction date.
- 7.2. The 10% deposit paid (if cleared by the Bank) shall be refunded to the same bank account from which the deposit transfer was made within two (2) working days.

8. BIDDING RATE

- 8.1. The Auctioneer shall have discretion to determine the increase of bidding rate based on the total number of Registered Online Bidders and value of the property auctioned.
- 8.2. In the event there is only one Registered Online Bidders during the auction, the public auction will begin at the property reserve price while if there are more than one Registered Online Bidders, the public auction will begin at the increment rate which to be determined.

9. ONLINE BIDDING PROCEDURES

- 9.1. Any bid once entered by the registered Online Bidders shall be binding upon the registered Online Bidders and the bid shall not be withdrawn or retracted in any manner whatsoever.
- 9.2. In the event, there is only one (1) or more than one (1) registered Online Bidders and no bid is entered by the said registered Online Bidders, the public auction in respect of that particular property shall be aborted.

- 9.3. Online Bidding shall generally commence based on the sequence of the lot of the property being shown on the bidding page in the LA website. However, the Auctioneer has the right to vary the sequence of the lot of the property without having to give prior notice to registered Online Bidders.
- 9.4. It shall be the responsibility of all registered Online Bidders to login through the LA website **at least 15 (fifteen) minutes before the auction time on the date of auction** and to wait for their turn to bid online for the property lot in which they have registered.
- 9.5. The public auction shall commence after the countdown of 5,4,3,2,1 and when a flash message stating **"Auction Started. Enter your bid now"** is displayed.
- 9.6. Registered Online Bidders shall start bidding online by pressing the **"BID button"** (for the 1st bid) and the bidding amount stated button for the subsequent bids. Each bid will be called for three (3) times **"First Calling", "Second Calling" and "Last Calling"**. Registered Online Bidders are advised to make their bids early before the calling and not to wait until the "Last Calling".
- 9.7. The information shown in the bidding page of the LA website of the new reserve price or increment rate prior to the commencement of the public auction shall be binding on all registered Online Bidders.
- 9.8. When the bidding website page displays **"No more Bids"**, no further bids shall be accepted by the Auctioneer and the registered Online Bidders with the highest bid shall be declared as the successful Purchaser (**"successful Purchaser"**) upon the fall of the hammer or any other manner deem fit by the Auctioneer.
- 9.9. The successful and unsuccessful registered Online Bidders shall be notified via registered e-mail by Leong Auctioneer.
- 9.10. Unsuccessful registered Online Bidders shall have the 10% deposit refunded to the same bank account from which the deposit transfer was made within two (2) working days.
- 9.11. In the event of any dispute as to any bid or any dispute arising prior to, during or resulting from the auction sale after the fall of the hammer, the Auctioneer may at his own option forthwith determine the dispute or put up the property for sale again or put the property at the last undisputed bid and/or in the event the public auction is deferred due to technical reasons, clarification, disruption or unforeseen circumstances, the Auctioneer may at his discretion decide to pause, restart, postpone and/or withdraw the property from the public auction and the registered Online Bidders will be notified of this on the bidding page of the LA website.
- 9.12. The Assignee/Bank shall be and is hereby at liberty to postpone, adjourn, stand down, call off, withdraw or vacate the auction sale at any time before the fall of hammer with or without notice and without having to provide any reason(s) or ground(s) whatsoever and the registered Online Bidders will be notified on the LA website.
- 9.13. The information shown in the bidding page of the LA website on the declaration of the successful Purchaser shall be binding on all registered Online Bidders.
- 9.14. The decision of the Auctioneer shall be final and conclusive.

10. POST PUBLIC AUCTION

- 10.1. The registered Online Bidders who is a Successful Purchaser in the auction sale (**"successful online bidder"**) shall undertake to **sign the Memorandum of Contract** and to pay the differential sum (if any) between the sum equivalent to 10% of the purchase price and the 10% deposit paid under Clause 5.1 above at the office of Leong Auctioneer **within three (3) working days from the date of auction**, failing which the 10% deposit paid shall be forfeited to the Assignee/Bank and the auction sale shall be deemed cancelled/terminated and the property may be put up for sale again without further notice to the successful online bidder.
- 10.2. The successful online bidder who is unable to sign the Memorandum of Contract at the office of Leong Auctioneer may do so by authorizing his/her/their agent to execute the same on his/her/their behalf by furnishing the following documents to Leong Auctioneer.
 - 10.2.1 A copy of the agent's Identity Card (both sides);
 - 10.2.2 A copy of successful online bidder's Identity Card; and
 - 10.2.3 A copy of the Letter of Authorization (if individual) or certified true copy of the Board of Director's Resolution (if company) authorizing such person to do so.
- 10.3. In the event if there is inconsistency between the personal details and documents uploaded in the LA website and the actual documents produced by the successful online bidder/authorized agent at the office of Leong Auctioneer, the Auctioneer shall have the right to refuse the successful online bidder/authorized agent from signing the Memorandum of Contract and the Auctioneer may at the Auctioneer's discretion cancel and terminate the sale and the 10% deposit paid shall be forfeited by the Assignee/Bank and the property may be put up for sale again.
- 10.4. The Memorandum of Contract, upon being signed by the successful online bidder /authorized agent, the Auctioneer and Assignee/Bank's Solicitor, shall be a conclusive evidence for the sale of the property to the successful online bidder.
- 10.5. An original Memorandum of Contract duly signed and stamped shall be collected by successful online bidder/authorized agent at the office of Leong Auctioneer within seven (7) days from the notification issued by Leong Auctioneer through a letter/e-mail/sms/whatsapp. Failing which, an original Memorandum of Contract duly signed and stamped shall be delivered to the successful online bidder by POS LAJU to the address of the successful online bidder provided in the Memorandum of Contract and/or address provided during registration and Leong Auctioneer shall not in any way be responsible or liable for any cost and expenses or loss arising thereof.
- 10.6. The successful online bidder shall settle the balance purchase price within one hundred and twenty (120) days from the date of auction sale.

11. APPLICABLE LAWS AND JURISDICTION

- 11.1. The usage of LA website together with the Online Terms & Conditions stated herein shall be governed by and construed in accordance with the laws of Malaysia.
- 11.2. The laws of Malaysia shall regulate and apply to all electronic transactions of immoveable property by public auction. Any legal actions or proceedings arising out of or in connection with the electronic transaction of immoveable property by public auction shall subject to the exclusive jurisdiction of the Courts of Malaysia.

12. CONFIDENTIALITY OF INFORMATION

- 12.1. By accessing this LA website, all the Online Bidders acknowledge and agree that Leong Auctioneer and LA website may collect, retain, or disclose the Online Bidder's information or any information by the Online Bidders for the effectiveness of services and the collected, retained or disclosed information shall comply with Personal Data Protection Act 2010 and any regulations, laws or rules applicable from time to time.
- 12.2. All Online Bidders agree to accept all relevant risks when using the services in the LA website and the Assignee/Bank, the Assignee/Bank's Solicitors and Leong Auctioneer or their respective servants or agents shall not be liable for any unauthorized access, claim or any consequential loss or damages suffered as a result thereof.

13. INTELLECTUAL PROPERTY

- 13.1. Any information, contents, materials, documents, details, graphics, files, data, text, images, digital pictures or any visual being displayed in the LA website shall not be used or published either by electronic, mechanical, photocopying, recording or otherwise without the permission from Leong Auctioneer.
- 13.2. In the event of any infringement of intellectual property rights under the Online Terms & Conditions herein, Leong Auctioneer may use any available legal remedies which may include the demand for actual or statutory damages, solicitors' fees and injunctive reliefs.

14. MISCELLANEOUS

- 14.1. In the event there is any inconsistency, discrepancy, misstatement or error appearing in translations of the particulars and the Online Terms & Conditions to any other language (if any), the Online Terms & Conditions in the English Language version shall prevail.
-